Foreign Relations of the United States 1950

Volume VI

East Asia and
The Pacific



United States
Government Printing Office
Washington : 1976

794A.00/7–2850 : Telegram

The Secretary of State to the Embassy in the United Kingdom[1]

TOP SECRET NIACT PRIORITY WASHINGTON, July 28, 1950—7 p. m.

522. For Douglas from Acheson. Reurtel 492 July 24. We agree high desirability reaching common understanding with UK on Formosa. Pls therefore urgently discuss matter in gen terms with Bevin[2] for purpose (1) getting US–UK joint position on immed aspects problem, (2) exploring with Bevin UN aspects Formosa question, (3) assuring Bevin we shld welcome further exchange views on longer-run questions on which we might not be able to agree at this time. Your approach shld be made as soon as practicable in view Malik's[3] announcement he wld join UNSC in Aug. and shld reflect clear desire on our part give careful and sympathetic consideration UK viewpoint in our desire find better basis common policy in Far East. We maintain, of course, views expressed Deptel 132 of July 10.[4] Ur presentation shld be along fol lines:

1. Action re Formosa taken by Pres as announced June 27 was for purpose eliminating or reducing risk Comie occupation and mil exploitation this strategically located island in crisis created by Korea attack, to safeguard sea and air flank of forces operating in Ryukyus–Japan–Korea area, and to prevent if possible general extension hostilities into wider areas of Pacific and FE.

Bevin will surely appreciate situation which confronted us in FE at time Korean attack. Demonstration that Sov orbit prepared use organized aggression in pursuit its objectives raised immed problem of other areas likely to be attacked and, indeed, problem as to whether USSR was intent on general war. Our action to neutralize Formosa was attempt to upset if possible any prearranged time tables and to limit fighting to Korea until general security situation could be assessed. We still have no assurances that Communist forces will not embark upon fresh adventures elsewhere.

From mil point of view, western strategic frontier for essential defense areas vital to US rests generally along islands extending from Aleutians through Japan to Philippine archipelago. With Kuriles already in hostile hands, Formosa's location is such that in hands of power hostile to US it wld constitute dangerous enemy salient in very center that part our position now keyed to Japan, Okinawa and Philippines. In event Formosa came into hands Chi Communists and latter made it available to hostile purposes to Sov forces at time US forces heavily engaged in Korea, grave danger wld result for entire US position in western Pacific. Its value to potential enemy is

[1] This telegram was repeated to New Delhi as 135 for the Ambassador.

[2] British Foreign Minister Ernest Bevin.

[3] Yakov A. Malik, Soviet Representative on the U.N. Security Council.

[4] For the text of this telegram, see vol. VII, p. 347. In it, Mr. Acheson emphasized the fact that United States action concerning Formosa resulted from the carefully planned aggression which had taken place in Korea and strongly insisted that no benefits should accrue to the Soviet Union and Communist China as a result of blackmail resulting from the North Korean aggression. (795.00/7–1050)

shown historically by its previous use by Japan as springboard for mil aggression against areas to south. Further seizure Formosa by Chi Commies at hour when UN forces resisting aggression Korea wld be considerable stimulus to morale of destructive forces in Asia and thus work to detriment US and other friendly states having interests in west and southwest Pacific. Denial of Formosa to Chi Commies was in circumstances an attempt which we had to make as matter of elementary precaution at time of grave uncertainty.

There was in our action no desire to force an answer to the many polit questions connected with Formosa problem; on contrary, it was hoped polit problems on which various govts had divergent views chld be frozen until the security situation cld be clarified. We very much hope Bevin will see the great desirability of our putting longer-range polit aspects Formosa on ice and that we can take common view on immediate need for mil standstill. You shld not imply to Bevin we think mil standstill prevents our strengthening Chi forces on Formosa; in face of very great Chi Commie build-up along mainland coast, 7th Fleet may not be able guarantee Formosa against hostile land and forces on island wld have important role to play in resisting attack.

2. You can give Bevin complete assurance US has no designs on Formosa and specifically has no intention of seizing Formosa unilaterally for US mil exploitation. Our action was not designed as step in any US offensive against mainland nor to place auths on Formosa in position to mount offensive against mainland. Aggravation highly inflamed situation Pacific by hostilities between mainland and Formosa, mil problems connected with Korean campaign, longer-range threat of Soviet-exploited Formosa to security western Pacific, and widespread polit blows dealt free world in Asia by Commie seizure Formosa at this juncture are the real and, we believe, sufficient reasons. In event Chi Commies launch attack against Formosa as they now threaten, 7th Fleet is under instructions perform mission indicated Pres statement June 27. In this contingency, or if Chi Commies intervene in Korea, our desire not to take action against Chi mainland wld have to be reviewed. We do not wish become involved in any way with general operations against Chi and wld seek to limit mil action to minimum requirements UN action in Korea and our determination to deny Formosa to enemy exploitation. If Chi Commies leave Korea alone (which we suspect they are not doing) and if they leave Formosa alone, there will be no fighting between US and Chi Commie forces. Further, Chi Commie attacks on Indo-China, Burma or Hong Kong would also raise very grave questions.

3. Pending settlement of Korean aggression acceptable to UNSC, US must continue patrol of Formosan strait for prevention hostilities between mainland and island. We recognize, however, that unilateral character our action has unsatisfactory aspects and we should be glad to have any further views Bevin has on this. Does he see any point in UN consideration of Formosa? If so, on what basis, in which organ, and how wld he see UN aspects developing? Wld UN consideration of mil standstill re Formosa be embarrassing and create serious differences among non-Soviet world? As we see it, it is unlikely that UNSC cld produce enough votes to pass a res on Formosa (not counting Malik's veto) unless US and UK supported common line in SC. Since

USSR or some other Member might bring matter into UN, US and UK shld try to concert positions on this aspect of matter as soon as possible.

4. We do not underestimate substantial nature long-term problems of Formosa question. Foregoing has applied to problems of immediate present. From longer-range view, we shall have to consider applicability Cairo and Potsdam Declarations, Formosa aspects Jap Peace Settlement, and ultimate status of Formosa itself. These questions greatly complicated at present time by fundamental divisions among govts of world as to Chi and recognition question.

There come to mind number of factors, generally unenvisaged at time Cairo Declaration, which lead us not to accept that Declaration as necessarily last word on subj Formosa.

(*a*) Commitments by USSR in connection with Cairo and Potsdam (e.g. independence of Korea and support of Natl Govt of Chi) have been grossly flouted;

(*b*) Record of Chi Natl Govt in Formosa, which assumed responsibility fol VJ-Day, has not been satis;

(*c*) It appears to us to be one thing to turn Formosa over to Rep of Chi as constituted at time Cairo Declaration; quite another to turn it over to Peiping regime which is acting in support of Moscow conspiracy against free nations;

(*d*) In view drastic change in situation in Chi and hostile totalitarian regime now established Peiping, are democratic countries not entitled to question the turning of Formosa over to such regime without consulting Formosans or applying principles of UN Charter applicable to dependent peoples? These and other aspects of the general problem are fully open to discussion as far as we are concerned, and we believe an early exchange of views with UK wld be helpful.

Dept recognizes complexity problem and importance early US–UK agreement if possible on immediate security and UN aspects without commitments as to longer-range questions.

You might desire explore with Bevin probable significance which policies on Formosa wld have for UK in connection with Brit defense position Hong Kong and Malaya, as well as for general peace Far East. We do not believe Formosa can be limited to a facet of Chi problem; it involves our attitude toward present Commie determination to seize Asia, a determination which US feels we must oppose in the interest our own natl as well as world security.

ACHESON

794A.00/7-2950: Telegram

The Ambassador in the United Kingdom (Douglas) to the Secretary of State

TOP SECRET NIACT LONDON, July 29, 1950—2 p. m.

630. For the Secretary from Douglas.

1. Discussed with Bevin Deptel 522, July 28, in regard to desirability reaching common understanding with UK on Formosa. Dis-

611.94A/8–1450 : Telegram

The Secretary of State to the Embassy in China

TOP SECRET WASHINGTON, August 14, 1950—3 p. m.

144. Eyes only for Rankin from Rusk. Fol is preliminary draft instrs on US policy toward Formosa and China being furnished for your info study and comment pending topside consideration here. Dept recognizes complexity and difficulty your assignment and desires to be maximum assistance. Highly restricted distribution this tel essential.

Present draft consists of three parts, (1) Interim policy during crisis created by Korean aggression (2) Long-Range policy applicable when Korean aggression resolved and present internatl tension reduced or at least clarified (3) responsibilities US reps re Formosa.

PART I—INTERIM POLICY

A. See relevant portions President's statement of June 27, 1950.

B. See relevant portions President's Msg to Congress of July 19, 1950.

C. Excerpt from NSC 37/10 dated August 3, 1950:

"1. Without prejudicing US initiative and freedom of action as to possible future courses of action with respect to Formosa, the US shld continue the present policy of denying Formosa to communist forces.

2. The US shld take steps (*a*) to assess the capabilities of the Chi Nationalist forces; (*b*) to insure that such Chi Nationalist military equipment as requires maintenance be rendered usable: (*c*) to meet deficiencies, now known to US mil auths, of Chi Nationalist mil supplies and material; and (*d*) in connection with (*c*) to give certain mil grant aid to the Chi Nationalist forces.

3. The US Govt shld make the necessary polit arrangements with the Chi Govt and shld direct the Commander in Chief, Far East to undertake forthwith a comprehensive mil survey of the resources and needs of the Chi Nationalist forces."

D. It is clear from the excerpts quoted above that the mil neutralization of Formosa is basic to US policy during the present crisis. Action of Pres announced June 27 was for purpose of eliminating or reducing risk of Commie occupation and mil exploitation of this strategically located island in crisis created by Korean attack, to safeguard sea and air flank of UN forces operating in Ryukyus–Japan–Korea area, and to prevent if possible gen extension hostilities into wider areas of Pacific and Far East. Demonstration given on June 25 that Sov orbit is now prepared to use organized aggresion in pursuit of its objectives raised immed the problem of other areas likely to be attacked as well as problem as to whether USSR was intent upon gen war. Our action

to neutralize Formosa was attempt to upset if possible any prearranged Commie time tables and to limit fighting to Korea until gen security situation cld be assessed.

From the mil point of view, western strategic frontier for the essential defense of areas vital to the US rests generally along islands extending from Aleutians through Japan to Phil archipelago. With Kuriles already in hostile hands, Formosa's location is such that, in hands of power hostile to the US, it wld constitute dangerous enemy salient in the center of that part of our position now keyed to Japan, Okinawa and the Philippines. In the event Formosa came into hands of Chi Commies and latter made it available for hostile purposes to Sov forces at time US forces are heavily engaged in Korea, grave danger wld result for entire US position in the western Pacific. Further, seizure of Formosa by Chi Commies at hour when UN forces are resisting aggression in Korea wld be considerable stimulus to morale of destructive forces in Asia and thus work to detriment of US and other friendly states located in or having interests in west and southwest Pacific. The denial of Formosa to Chi Commies is, under present circumstances, an attempt which we must make as a matter of elementary precaution at a time of grave uncertainty.

On specific points arising from our effort to neutralize Formosa military, the fol instrs are called to your attn:

(1) Telcan June 27 containing text msg to CKS re: mission of Seventh Fleet.
(2) Deptels 30 and 55 re: bombing of Communist airfields and troop and ship concentrations by Chi Nationalist forces.
(3) Deptel 61 re: Nationalist held islands along China mainland.
(4) Deptel 64 re: air and naval reconnaissance by Chi Gov.

E. Also clear from the excerpts quoted above is the desire to suspend during the present crisis the complicated polit questions which arise in connection with Formosa. The directive to the Seventh Fleet did not represent a desire on our part to force an answer to such questions. On the contrary, it was hoped that these polit problems, on which the principal govts have widely divergent views, cld be frozen until the security situation cld be clarified. We consider it of the highest importance that differences as to Formosa not divide the solid world community in dealing with the Korean problem and that the necessity for a mil standstill on Formosa can be widely recognized and supported.

As indicated in the President's msg to Congress, July 19, above, US has no designs on Formosa and specifically has no intention of seizing Formosa unilaterally for US mil exploitation. Our action of June 27 was not designed as a step in any US offensive against mainland nor as step to place auths in Formosa in position to mount gen offensive against mainland with US support. If Chi Commies intervene in

Korea or attack Formosa, Hong Kong, Indochina, or Burma, our desire not to take action against Chi mainland wld have to be reviewed. However, we do not wish to become involved in any way with gen operations against Chi and wld seek to limit mil action to minimum requirements of situation created by Chi aggressive action.

Failure of US either to reaffirm or to modify its attitude toward Cairo Declaration derives from desire to leave polit questions re Formosa for the future to the maximum extent possible. The absence of policy declarations on such questions shld not be given polit significance.

F. Our interim policy permits mil and econ assistance to Formosa. In the face of a very great Chi Commie build-up along the mainland coast, the Seventh Fleet may not be able to guarantee Formosa against hostile landing. In this event, forces on the island wld have an important role to play in resisting the attack. In addition, it wld not be in US interests for Formosa to fall by subversion or collapse on the island itself. Under the circumstances, it is our desire to furnish, within a prudent use of available appropriations, certain types of econ and mil assistance to the auths on Formosa. This assistance shld be based upon critical needs known to and accepted by competent US mil auths; it shld be supervised to the extent necessary to insure proper use. Although the situation on the island is such that a considerable margin of error may have to be accepted, every effort will be required to insure that US aid is employed for the purposes for which it is given. So long as the Seventh Fleet has its present mission, it is in our interest to insure insofar as possible that the island is in good order, that admin is reasonably effective, that full attn is paid to the lot and well-being of the Formosans themselves and that US aid not become subj to racketeering. If the Seventh Fleet is withdrawn at some point in the future from its present mission, it is desired that the island be in a substantially better position than it was on June 25.

In conducting US aid programs on Formosa, it is not desired to establish enlarged US participation in and assumption of responsibility for the admin of the island. For example, it wld be unwise for ECA to become involved in any formal joint responsibility with the Chi Govt which might symbolize a US commitment to underwrite the economy of the island. This does not mean that ECA should not be actively concerned with and press upon the Chi such econ measures as are necessary to improve the econ situation on Formosa. ECA shld continue to act vigorously, of course, on all matters directly related to the operation of the ECA aid program itself and apply the gen prin-

ciple used elsewhere that US aid is contingent upon effective performance and honest effort on the part of the recipient.

G. It is our present intention to continue to maintain dipl relations with the Chi Govt on Formosa and to accord to that Govt and its reps the benefits of that relationship. We do not wish to make any commitment to Chi auths as to how long this relationship will extend into the future. On the other hand, US reps on the island are accredited to the Chi Govt and shld conduct their activities accordingly. Conversely, US reps on Formosa shld insist upon full and proper treatment as such by all Chi auths and should report at once any indication of any tendency on the part of the Chi not to maintain relations on an acceptable basis.

H. The US opposes the seating of Chi Commie reps in the UN or other internatl bodies. This is a matter of US policy and is not to be made the subj of any commitment to the Chi Govt on Formosa. The US will accept the normal parliamentary majorities in internatl bodies on this matter and will accept the result if a majority decides to seat the reps of Peiping. We do not consider that we have a veto on this question in the SC. Our view is that if the permanent members of the SC shld be allowed to exercise a veto on this issue, the SC wld find itself in an absurd position and cld be easily wrecked by a recalcitrant member.

I. Insofar as mil operations are concerned, Formosa is within the area of responsibility of CINCFE, who receives directives on such matters through mil channels. It is expected that CINCFE will designate a senior officer as his rep on Formosa. If at any time this officer requires your assistance in connection with his own duties, you will, of course, afford him all possible cooperation. The success of US policy in Formosa will depend to a considerable extent upon cooperation and mutual confidence among the chief of the dipl mission, the chief of the ECA mission and CINCFE's rep.

J. In addition to the mil advice to be furnished by CINCFE's rep and the econ and financial advice to be furnished by ECA, the Chargé d'Affaires will wish to consider what recommendations and advice the US shld offer on other matters of a polit and administrative nature. In the normal case, you shld consult the Dept on such matters, where time permits, before approaching Chi auths.

Part II—Long-Range Policy

A. It is not possible under present circumstances to provide detailed instrs regarding our long-range policy toward Formosa. It is anticipated that the interim policy outlined above will obtain for a consider-

able period and that events in the broader world scene will have an important bearing on the Formosa situation.

B. It is US policy to employ polit and econ means to present [*prevent*] Formosa's falling into Commie hands. At the present time, polit and econ means have been reinforced by the mission assigned to the Seventh Fleet. It will be in the interest of the US, therefore, for Formosa to become politically stable, economically self-sustaining and militarily secure. The achievement of this result will require a more enlightened statesmanship from Chi leaders than has thus far shown itself on Formosa. Chi auths will need a reasonably efficient admin acting under legal processes, the confidence and respect of the Formosan people, the loyal support of disciplined and effective armed forces and internatl approval of conditions on the island.

C. It is not in the interest of the US to restrict its freedom of action by indefinite commitments to the Chi auths on Formosa as to our future policy. Specifically, we shld make no long-range commitments about continued recognition of the Nationalist Govt as the Govt of China, about the Chi seat in the UN, or, particularly, about US support for attempts by the Nationalist Govt to return to the mainland. This does not mean that we may not continue to recognize the Nationalist Govt and support it in the UN; it does mean that our policy shld be based solely on overall US interests and not upon commitments to the Chi Nationalist Govt impairing our freedom of action.

PART III—RESPONSIBILITIES OF US OFFICIALS ON FORMOSA

The US Chargé d'Affaires, as ranking US rep on Formosa, is responsible for assuring that all US activities on Formosa (other than CINCFE's mil responsibilities) are coordinated toward the achievement of the fon policy objectives of the US.

In order to carry out his mission with respect to Formosa, CINCFE will maintain on Formosa for purposes of liaison with the Chi Natl mil auths a liaison group under a senior officer with direct responsibility to and channels of communication with CINCFE and such other mil auths as the latter may direct. Such senior officer shld at all times keep the US Chargé d'Affaires generally informed on all matters except those concerning details of mil operation and admin.

The Chief of the ECA mission on Formosa will work in close cooperation with and under the gen policy guidance of the US Chargé d'Affaires. The Chief of the ECA Mission will continue to receive operating supervision from the ECA Administrator and will use his own communication series for that purpose. [Rusk.]

ACHESON

proached him re alleged bombing by UN forces two Chinese border towns. I obtained impression from Bajpai's remarks that Peking desired GOI support in SC for resolution condemning such action by UN forces and calling for compensation for damage done.

2. Bajpai said GOI had sent Panikkar telegram containing *aide-mémoire* to be handed Peking authorities. Bajpai read aloud excerpts from this *aide-mémoire*. Among points made as I recall were following:

(*a*) If Peking would cease carrying on such extreme anti-US propaganda some of its approaches to UN might be received more sympathetically.

(*b*) Peking would also gain in world opinion if it would cease making threats to take military action against Formosa and Tibet. It would be particularly advantageous to Peking if it could make "harmonious adjustment of legitimate Tibetan claims to autonomy in framework of Chinese sovereignty".

3. Bajpai said he thought it would be helpful if appropriate spokesmen for UN forces would issue statement to effect that if Chinese towns had been bombed action was unintentional and regretted and after investigation compensation would be forthcoming.

4. Bajpai indicated GOI might vigorously participate in effort seat Peking in coming GA.

HENDERSON

794A.00/9–150

Memorandum Prepared in the Preliminary Tripartite Meetings for the Tripartite Foreign Ministers Meeting [1]

TOP SECRET [WASHINGTON,] September 1, 1950.
Document 11 [D–6/2*a*] [2]

FORMOSA

A. AREAS OF AGREEMENT

1. The Cairo Declaration must be taken into consideration in any study of the ultimate status of Formosa.

2. The problems of temporary "military neutralization" and of ultimate disposition of Formosa are distinct.

3. The charge of aggression laid by the Peiping regime, is now properly in the United Nations Security Council. The U.K. and French

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[1] Complete documentation on the Foreign Ministers meeting and the preliminary meetings is scheduled for publication in volume III. This document was approved on September 1 by the French, British and United States Delegations headed by Ambassador Bonnet, Sir Derick Hoyer Millar, and Philip Jessup, respectively, and referred to the Foreign Ministers who took up the question of Formosa on September 14; see p. 500.

[2] Brackets appear in the original.

support the present American action in the Security Council. The long-term disposition of the question would best be handled through the United Nations General Assembly.

B. QUESTIONS REQUIRING MINISTERIAL CONSIDERATION

1. Agreement was lacking respecting the relative importance that the Cairo Declaration bore for determination of the ultimate status of Formosa. In the U.K. view the Cairo Declaration is fundamental.

2. There remained open the question of the most desirable long-term political solution for Formosa. Mention was made of various alternatives, including consolidation with the mainland, independence, and UN Trusteeship. The feasibility of a plebiscite was questioned by the U.K. and French delegations. In the U.K. view independence was irreconcilable with the Cairo Declaration and unacceptable to both Chinese parties.

3. Discussion was inconclusive regarding the subject of making the "military neutralization" equally effective in its application to both Chinese parties. In the U.K. view certain actions of the National Government since June 27 were inconsistent with the President's declaration.

4. The question of whether, and how, action in the UNSC and UNGA could get sufficient support from other governments to bring about a solution led to no conclusion. In the U.K. and French views chances of success would be increased by (*a*) the issuance of a unilateral and/or multilateral statement reiterating the Cairo Declaration respecting the future of Formosa and (*b*) the implementation of the President's statement of June 27 in a manner to bring about an effective *bilateral* "military neutralization".

5. There remained open the question of the procedure and action to be adopted in the event of a Chinese Communist attack against Formosa prior to some settlement through UN action. It was suggested that the present process in the Security Council could be continued, with a new orientation.

6. The precise manner in which the matter should still be pursued in its immediate phase in the Security Council, and in its later stages in the General Assembly, remained an open problem, but with general agreement that the matter was at present in the proper channels and that future action could be determined in the light of events.

611.00/9-150 : Telegram

The Secretary of State to the Embassy in India

TOP SECRET PRIORITY WASHINGTON, September 1, 1950—7 p. m.

330. Ur conversation with Bajpai Aug 24 re Pannikar's interpretation of Chi Commie attitude illuminating. It wld be very helpful

asked if there would be objection to despatch of excerpts to Peiping to be used in discussions with Peiping Government. I told him he could use his judgment but he should bear in mind that what I gave him in writing was not a formal document but merely my oral statements reduced to written form. These statements were for information of GOI and should not be considered message from US to Peiping regime.

3. Bajpai referred to President's "Fireside Chat" of September 1 and said in his opinion it was most useful statement made by US re Far East since hostilities began. He was, however, still personally concerned at what reaction in China would be if Chinese Communist delegation should go to Lake Success, apply for admission into GA, and be rejected. The reaction in China would be much sharper than it had been when SC voted against admission Communist China. It would be more humiliating for Communist China representatives on spot to be rejected. Nevertheless, it would in his opinion be still worse for US to refuse visas. He had no sympathy for Communism, or for ideology of Peiping Government. Nevertheless, he was convinced that continued ostracism of Peiping would result in strengthening Russian influence in China and in making more difficult efforts to those free nations which were trying to encourage Communist China to remain independent. He understood, he thought, US position, but he still was of opinion that if pros and cons would be added up unemotionally and balanced it would be found that admission of Communist China into UN would be to advantage free world.

4. Bajpai told me in confidence Rau had been instructed unless some unexpected development should take place, not to vote in favor admission of Communist China into discussion Korean situation. These instructions had been issued on his initiative on ground that India was striving to find solution to Korean problem and presence of Communist China might not at this stage facilitate such solution. Rau would probably abstain.

HENDERSON

794A.00/9–450 : Telegram

The Chargé in China (Rankin) to the Secretary of State

SECRET PRIORITY TAIPEI, September 4, 1950—2 p. m.

340. Foreign Minister Yeh called me urgently this morning to say that Generalissimo had summoned him and Prime Minister to discuss as yet unidentified news agency report of negotiations between US and India involving China. Report is to effect US offers support project of trusteeship for Formosa in return for India's foregoing sponsorship of Peiping regime for UN membership.

Yeh asked me if I had information on above. I replied in negative and said I did not believe story should be accepted at face value.

adding that word "trusteeship" is being loosely used in press and elsewhere without general realization either of its legal significance under UN charter or practical implications in case of Formosa.

Foreign Minister said he had been giving much same explanation as mine in response to questions he is receiving from various quarters. He deplored unsettling effect of series recent events and reports, whether correct or otherwise, on Chinese Government, armed forces and Formosan population. Understands US readiness have the "aggression" aganst Formosa investigated by UN but fears anticipated arrival UN investigators, including Russians or satellites, would not only serve Communist propaganda ends but would promote unrest among Formosans and possibly cause split in Chinese Government. Democratic elements, he said would wish conform UN decisions however distasteful but military probably would refuse allow Russians or other satellite representatives to land on island. Ostensible reason would be security but more important would be unwillingness swallow arrival of enemy representatives to investigate anything on Formosa when everyone else agrees it is the Communists who need investigating. Bulk of Formosan population would interpret UN investigations as directed against Chinese Government rather than US aggression.

Yeh expressed hope US recognized fact that Formosa today one of most peaceful and stable parts of Asia with state of law and order better even than Hong Kong; also that substantial progress has been made in improving effectiveness of government and economic and military conditions, besides extending democratic processes. Believes it would be most helpful if US Government could take public cognizance these facts and contribute further to allaying uncertainty caused by recent events and rumors by stating definitely that future status of Formosa must await peace settlement with Japan. Alternative time limits involving "consideration by UN" or taking of "international action" are being freely interpreted to mean that any morning people in Formosa may wake up to learn that they have been turned over to some international authority, with reasonable certainty that in resulting confusion Chinese Communists will actually be ones to take over.

Department pass New Delhi; sent Department 340; repeated information New Delhi 2.

RANKIN

794A.00/9–450 : Telegram

The Secretary of State to the Embassy in China

SECRET WASHINGTON, September 4, 1950—3 p. m.

214. Reurtel 340 Sept 4. Rumors of negotiations between US and India for trusteeship Formosa with deal on Chi representation base-

mending that a "military economist", which both ECA and the Department had urged that Army assign to Taiwan, should be attached to a U.S. Military Advisory Group on Taiwan rather than to the ECA Mission or the Military Attaché's Staff at the Embassy. He stated that it was his understanding that there is presently no plan for the establishment of a U.S. Military Advisory Group on the Island and suggested that such a "military economist" might best be attached to the ECA Mission in view of the fact that his *raison d'etre* would be economic rather than military and because, if he were thus assigned, he could be influenced to avoid improper participation in strictly military activities. Mr. Moyer asked whether there would be any objection to the assignment of such a man to Admiral Jarrett's staff. Mr. Clubb stated that this might be the most appropriate arrangement since, whatever the objective of his assignment, his function would be military in character. Mr. Moyer added that his attachment to the ECA Mission would lend a certain military color to the economic program which ECA had thus far been careful to avoid.

320/10–1150 : Telegram

The United States Representative at the United Nations (Austin) to the Secretary of State

SECRET NEW YORK, October 11, 1950—6 : 58 p. m.

Delga 106. There is given below revised UK draft resolution on Formosa upon which Department's views are requested. UK has distributed this draft resolution only to Commonwealth countries and US. UK delegation requests US views on sponsorship of resolution and states it has tentatively reached conclusion that some nation which has not recognized Communist China should be sponsor. UK also desires US views on how soon resolution should be tabled in Committee 1 as it is of opinion that mere fact of making resolution public at early date would have beneficial effect on Peiping regime. USUN officer expressed personal opinion that it would appear preferable to have sponsorship of several countries equally divided among those recognizing and those not recognizing Communist China. Following is text draft resolution:

"Noting (A) That the signatories to the Cairo declaration declared it to be one of their purposes that all the territories that Japan had stolen from the Chinese, including Formosa, should be restored to the Republic of China;

(B) That no legal change in the status of Formosa as Japanese territory has yet been effected, although at the end of hostilities with Japan, China was permitted to assume the administration of the island,

Recognizing that two parties, both Chinese, at present claim the

right to administer Formosa, that there have been threats of an armed attack on Formosa from the Chinese mainland and that Formosa has been used as a base for attacks on the Chinese mainland, and that an attempt to settle the dispute by force or the continuance of attacks on the Chinese mainland from Formosa would heighten international tension at a time when the situation in the Pacific area is already tense as a result of events in Korea, and would be prejudicial to the interests of the people of Formosa,

Decides to establish a commission which, bearing in mind China's claims, should study the problem and submit a report to the GA containing recommendations for the future of Formosa. The commission should consult with all governments, authorities and parties concerned,

Recommends (A) That, pending consideration of the Commission's report by the GA, there should be no attempt to seek a solution of the issue by force,

(B) That Formosa should not be used as a base for attacks on the Chinese mainland;

Requests all parties (A) to act in conformity with (A) and (B) above;

(B) To render every possible assistance to the commission in the performance of its task."

Department pass London, Paris, sent Department Delga 106, repeated London 5, Paris 5.

AUSTIN

795.00/10-1250

Memorandum Prepared by the Central Intelligence Agency

TOP SECRET [WASHINGTON,] 12 October 1950.

C. THREAT OF CHINESE COMMUNIST INVASION OF FORMOSA [1]

I. STATEMENT OF THE PROBLEM

1. To estimate the threat of Chinese Communist invasion of Formosa during 1950.

II. CAPABILITIES

2. Despite certain definite Chinese Communist deficiencies in naval and air forces and probably in amphibious training and doctrine, the Communists are now capable of launching an invasion against Formosa with about 200,000 troops and moderate air cover. The USSR could at a minimum furnish tactical advice and technical and logistic support.

3. Although Chinese Nationalist forces are sufficient in number and matériel to defend Formosa, lack of staying power, poor command

[1] This paper was one of a series prepared for background use in connection with the conference at Wake Island on October 15 between President Truman and General MacArthur, for documentation on which see vol. VII, pp. 731 ff.

that China would intervene in Korea in case US forces should enter North Korea it would be ironical if China instead of intervening in Korea should now invade Tibet.

4. I hope info in this telegram will be closely guarded since leak would cause grave embarrassment.

HENDERSON

794A.00/10–1450 : Telegram

The Secretary of State to the United States Mission at the United Nations

SECRET WASHINGTON, October 14, 1950—11 a. m.

Gadel 44. With ref Delga 106 Oct. 11 Dept believes Brit draft offers satisfactory basis for Assembly res on item "Question of Formosa". Fol is modified text of Brit draft with our additions and changes:

"Noting (A) that the signatories to the Cairo Declaration declared it to be one of their purposes that all the territories that Japan had stolen from the Chi, including Formosa and the Pescadores, shld be restored to the Rep of China;

(B) that no formal act restoring sovereignty to China has yet occurred, although at the end of hostilities with Japan the Chi Natl Govt was permitted to assume the administration of the island;

Recognizing that two parties, both Chi, at present claim the right to administer Formosa, that there have been threats of an armed attack on Formosa from the Chi mainland and that Formosa has been used as a base for attacks on the Chi mainland, and that an attempt to settle the dispute by force or the continuance of attacks on the Chi mainland from Formosa wld heighten internatl tension at a time when the situation in the Pacific area is already tense as a result of events in Korea, and wld be prejudicial to the interests of the people of Formosa;

Decides to establish a commission composed of the representatives of (specified states) which, bearing in mind China's claim, taking into account the interests of the people of Formosa, and giving consideration to the maintenance of peace in the Pacific, shld study the problem and submit a report to the GA containing recommendations for the future of Formosa and the Pescadores. The Commission shld consult all govts, authorities and parties concerned, including both Chi claimants;

Recommends that, pending the study by the Commission and adoption by the GA of recommendations concerning this problem (A) there be no attempt to seek a solution of the status of Formosa by force, (B) Formosa not be used as a base for attacks on the Chi mainland;

Requests both Chi parties to act in conformity with the recommendation in the preceding para;

Recommends to the SC that it consider immediately any action in contravention of (A) or (B) of above recommendation with a view to adopting appropriate measures for the maintenance of internatl peace and security;

Requests all parties to render every possible assistance to the commission in the performance of its tasks."

In the first operative para beginning with "Decides" insertion of phrase "taking into account the interests of the people of Formosa" is predicated upon our belief that interests of Formosan people shld be mentioned on equal level with China's claim. In addition to China's claim and wishes of Formosans broad interest of UN in peace of Pacific area also a factor to be taken into account.

Rephrasing of first recommendation is drafting change designed primarily to define more clearly the period during which that recommendation applies.

Dept believes desirable that first recommendation of Brit draft be further strengthened. With this in mind Dept has added recommendation referring to SC action as warning to those who might violate recommendation to refrain from use of force.

We assume under Brit draft Commission wld have discretion as to when to report. In view of complexity of problem and need for thorough study all aspects, appears doubtful that final report cld be made before Sixth Session GA.

Dept considers composition of commission extremely important and is giving further consideration this subj. Wld tentatively favor US membership.

Dept agrees with USUN officer (Delga 106) that it wld be preferable to have sponsorship of several countries including some recognizing and some not recognizing Chi Commies. We believe that res cld be submitted to Comite as soon as acceptable draft developed and sponsorship question resolved.

Dept wld appreciate ur early comment on foregoing, including suggestions re composition Commission. Suggest also you obtain views UK Del re modified draft, and inform Dept re any comment made by Commonwealth countries to UK Del on Brit draft.

ACHESON

794A.00/10–1450

Memorandum of Conversation, by the Assistant Secretary of State for Far Eastern Affairs (Rusk)

TOP SECRET WAKE ISLAND, October 14, 1950.

Subject: Formosa

Participants: General of the Army Douglas MacArthur
Mr. W. Averell Harriman
Mr. Dean Rusk

In a private conversation among the three of us following the larger conference with the President, Mr. Harriman asked General

MacArthur whether the subject of Formosa had come up in the President's private talk with General MacArthur at breakfast.

General MacArthur said: "Yes. I told the President that I had supposed that my letter to the Veterans of Foreign Wars had been right down the line of the President's policy. Had I not thought so, I would not have sent it. The President said that he considered that a closed issue. I told him that I also considered it as closed."

The above quotation is almost exact but may vary by a few words. The meaning is accurate.

This memorandum was checked with Mr. Harriman.

DEAN RUSK

794A.00/10–2350

Memorandum of Conversation, by Mr. John M. Allison, Adviser to the United States Delegation to the United Nations General Assembly

SECRET [NEW YORK,] October 23, 1950.

Subject: Formosa

Participants: The Secretary
John Foster Dulles
Lucius D. Battle
John M. Allison

Mr. Dulles and Mr. Allison called on the Secretary at the Waldorf this afternoon to discuss the Formosan item which may come before Committee I sometime within the next two weeks. Mr. Dulles stated that he had been considering the matter over the weekend and welcomed the chance to give the Secretary his thoughts.

Mr. Allison said that as an introduction to Mr. Dulles' statement, he would like to point out that while there appeared to be general agreement in the Department with the form of the Resolution on the Formosan problem which had been prepared by the UK Delegation, nevertheless as a result of talks with members of the UK and Canadian Delegations it was clear that there was not agreement as to the final ends which it was hoped would be achieved by the passage of the UK Resolution. The Canadians and, to a lesser extent, the UK delegation seemed to assume that there was only one possible answer which the Commission, contemplated in the UK Resolution, could come up with, namely, the handing over of Formosa unconditionally to Communist China. This was not the desire or belief of the US delegation and it therefore was important that agreement he reached on the ends desired so that an unfavorable result would not be obtained by default.

Mr. Dulles then outlined his views on the position the US should take which were substantially as follows:

The US interest in the Formosan problem is a deep and legitimate

one and the US feels it has a special responsibility in view of the close connection between the ultimate disposition of Formosa and the conclusion of a Japanese peace treaty which will formally remove Formosa from Japanese sovereignty. The US being the chief occupying power in Japan and the one most deeply concerned in a Japanese peace settlement naturally has great responsibility to see that any solution of the Formosan issue is a sound one which contributes to peace and stability in the Pacific area and the welfare of the people. The US has no desire to cast doubt upon the validity of the Cairo and Potsdam Agreements with respect to Formosa and does not maintain that Formosa should not in due course be formally returned to China. However, the present Chinese Government on the mainland of China is not the one which was in power at the time of Cairo and Potsdam and it certainly is not clear that the people of Formosa desire to be placed in subjection to that government.

It would seem that before a definitive decision is implemented in pursuance of a Japanese Peace treaty, at least the following four points ought to be explored by the United Nations:

1. While it could fairly be assumed at the time of Cairo and Potsdam that the Formosan people would welcome a return to China, intervening changes have been so great that that assumption might not be valid today. In view of United Nations Charter undertakings which overide any inconsistent engagements, it would seem that the United Nations should seek to find out whether, in fact, the wishes of the people of Formosa remain as had been assumed at the time of Cairo and Potsdam and whether or not they desire to become subject to the regime that presently controls the Chinese mainland.

2. If Formosa is to become politically a part of China, should not the arrangement include some provision for autonomy which would reflect the oft-expressed desire of the Formosan people for a measure at least of self-government?

The United Nations is considering this problem in connection with the giving to Ethiopia of political sovereignty over Eritrea and is contemplating a measure of autonomy under a Federal structure. Some such formula might also be explored in the case of Formosa as being consistent with the Charter conception with reference to non-self-governing peoples.

3. Another item of importance which should be considered by the UN in reaching a just solution of the Formosan matter is the fact that for the last fifty years or so Formosa has been a part of Japan and its economy has been integrated with that of Japan. There is still a close commercial connection between Japan and Formosa and consideration should be given to the advisability of maintaining, at least for a considerable period, free trade between Japan and Formosa which would undoubtedly be in the interest of both parties.

4. In view of the strategic position of Formosa and in view of the fact that any attempt by force to settle its ultimate disposition might well prejudice the maintenance of peace and stability in the Pacific

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area, it is believed that the UN might well give careful consideration to the possibility of permanently neutralizing Formosa in some manner which, while not prejudicing any particular political solution, would nevertheless ensure that Formosa would not be the cause of aggravating great power tensions or even be a precipitating cause of war. It might also be that, pending definitive action, the UN, under its Uniting for Peace Resolution, might promptly send a peace observation commission to Formosa to help preserve the *status quo* as against breach of the peace.

Secretary Acheson expressed his agreement with the approach Mr. Dulles had in mind and authorized Mr. Dulles to proceed along the lines indicated. It was pointed out that there was one possibility which had not been considered and that if the approach suggested by Mr. Dulles were adopted it would not be possible to consider this other approach which was, in brief, that new leadership might emerge among the non-communist liberal Chinese elements on Formosa, that Chiang Kai-shek might be displaced and that with this new leadership and a certain amount of American assistance it might be possible to make landings on the mainland and in cooperation with disaffected elements there succeed in overthrowing the Communist regime. Both Secretary Acheson and Mr. Dulles agreed that it would be inconsistent with US policy in the UN for this Government to plan to use Formosa as a base for military expeditions aiming at regaining control of the Chinese mainland and it was agreed that this alternative should not be considered at this time. However, if the Chinese Communist regime should take overt action in an endeavor to seize Formosa by force while UN consideration of the matter was going on it would be necessary to review the situation. It was assumed that in the meantime Formosa might be used as a base for propaganda activity and perhaps certain covert contact with resisting elements on the mainland.

With respect to the position of the Seventh Fleet, Secretary Acheson pointed out that its value was primarily psychological in as much as it had not in fact spent much of its time in the Formosa Straits but rather had been in Korean waters. It was agreed that a formal announcement of a withdrawal of the Seventh Fleet would be unfortunate and would appear to be an invitation to the Communists to take over and it was felt that for the present, until the Korean situation had been brought to a final successful close, it would probably be necessary for the orders of the Seventh Fleet to remain unchanged. At a suitable time it might well be possible for the Seventh Fleet without any public announcement to withdraw to its original base at Cavite without creating unfortunate repercussions. It was also agreed that it would be useful to consult the military on this matter and have the benefit of their latest thinking.

It is hoped that such contact can be continued, to extent it developed, when and if situation becomes more normal and that systematic relay significant info can in future help fill gap caused by absence Amer representation Commie China.

ACHESON

794A.00/11-1150

The Secretary of State to the Secretary of Defense (Marshall)

TOP SECRET WASHINGTON, November 11, 1950.

MY DEAR MR. SECRETARY: The question of Formosa will shortly come before the Political Committee of the General Assembly. The Department of State considers that, if we are to have any chance to accomplish our basic purposes with respect to Formosa, we now concentrate at this stage of United Nations procedure upon (1) the military neutralization of Formosa and (2) an insistence that the question of Formosa be settled by peaceful means. The text of a draft resolution which would accomplish these purposes, to the extent that parliamentary action in the United Nations can do so, is attached for your information. Considerable advantage would be obtained by having a number of delegations, including the United States and the United Kingdom, sponsor a resolution along these lines at an early stage in General Assembly debate.

There are solid advantages in a procedure which does not require the United States or its major friends and allies to commit themselves to hard and fast positions respecting the substantive aspects of the problem at this time. At present, there is a considerable gap between our thinking and that of our major friends. It would be harmful to have these divergences given public prominence. On the other hand, it is very possible that with the passing of time as the intentions of the Chinese Communists respecting their neighbors become clearer and as certain factors in the situation such as the wishes of the Formosans are brought out and given greater prominence, these divergences may be substantially reduced or eliminated.

Under the procedure we envisage, a United Nations commission would spend the first year in studying the problem, in bringing out all relevant factors and in providing an opportunity for a full exchange of views among the governments concerned. The commission would give careful consideration to the respective Chinese claims to Formosa, to the well-being and wishes of the Formosans themselves, and to the valid interest of the international community in promoting peace and security in the western Pacific area. This interest of the world community embraces not only the need for a peaceful solution of this problem where use of force has been threatened; it necessitates taking

into account such other factors as the past use of Formosa as a base for military aggression and a possible future use of it for this purpose.

During the course of discussion in the Political Committee the question of the present mission of the United States 7th Fleet will probably be raised and it will be necessary for the United States Representative to deal with this question promptly. A draft statement for the use of the United States Representative is now being prepared and will be cleared with the Department of Defense and the President before being used.

With respect to the composition of the commission, it is believed that in the commission the proportion of members recognizing Communist China should be roughly the same as obtains in the General Assembly (17 out of 60) and that the composition of the commission should take into account the interests of the Asian Governments.

Your special attention is invited to the fact that our present purpose is to insure the neutralization of Formosa pending an extended process of peaceful settlement of the Formosa question. That is based upon the long-standing view of this Government that our primary security objective is to deny Formosa to the exploitation of an enemy. The question arises as to the position if Communist China persists in its intervention in Korea and puts itself in such an aggressive position as to require military action against the mainland of China. The Department of State considers that the procedure we now have in mind would leave the way open for further United Nations action against China which would permit the use of Formosa for operations against China in the event of clear Chinese aggression. We do not believe that we could successfully inject this issue into the Formosa question at this stage but we shall handle the case in such a way as not to foreclose our freedom of action in the event we and the United Nations decide to act against China as an aggressor.

Sincerely yours, DEAN ACHESON

[Enclosure]

DRAFT RESOLUTION ON THE PROBLEM OF FORMOSA

Noting that the signatories to the Cairo Declaration declared it to be one of their purposes that certain territories formerly held by Japan, including Formosa and the Pescadores, should be restored to the Republic of China and that no formal act restoring sovereignty over these territories to China has yet occurred;

Recognizing that two parties at present claim the right to administer Formosa, that there have been threats of an armed attack on Formosa from the Chinese mainland and that Formosa has been used as a base for attacks on the Chinese mainland, that attempts to settle the dis-

pute by force would heighten international tension and would be prejudicial to the maintenance of international peace and security in the area as well as prejudicial to the interests of the people of Formosa; and further

Recognizing that the foregoing considerations raise questions as to the obligations and responsibilities of Members under the Charter;

Decides to establish a commission composed of the representatives of the following States (five to seven) which, bearing in mind the considerations set forth in the preceding paragraphs should study the problem and submit a report to the General Assembly containing recommendations for the future of Formosa and the Pescadores. The commission should consult all governments, authorities and parties concerned;

Recommend[*s*] that, pending the study by the commission and adoption by the General Assembly of recommendations concerning this problem, there be no attempt to change the status of Formosa by force and that there be neither (*a*) armed attack on Formosa from the Chinese mainland, or (*b*) armed attack on the Chinese mainland from Formosa;

Requests all governments and authorities concerned to act in conformity with the recommendation in the preceding paragraph and render every possible assistance to the commission in the performance of its tasks.

IO Files

Minutes of the 39th Meeting of the United States Delegation to the United Nations General Assembly

SECRET NEW YORK, November 14, 1950—9:15 a. m.

[Here follows a list of the 48 persons present.]

Formosa (US/A/C.1/2266).[1]

Mr. Allison stated that Formosa constituted one of the most controversial problems, not only in our own country, but also among our friends in the United Nations. The easiest way to illustrate this controversy was to indicate that of the nations most concerned with the Pacific war—the thirteen states on the Far Eastern Commission—six recognized the Chinese Communists. He pointed out that it had been agreed at Cairo and at Potsdam that Formosa should be Chinese. Pursuant to these agreements, the Chinese army had taken the surrender of the Japanese on Formosa, and China had maintained administrative control over the island. It was now the headquarters of the Na-

[1] US/A/C.12266 contained the text of the United States draft resolution on Formosa; the text was the same as that in the enclosure to Mr. Acheson's letter to Secretary Marshall, November 11, *supra*.

tionalist Government. He referred to the President's decision to use the Seventh Fleet to neutralize Formosa at the time of the Korean crisis.

As a result of this decision, Mr. Allison explained, the Department had believed it important for Formosa to remain neutralized, if at all possible. While he did not wish to go into the question of the strategic importance of the island, he observed that there was some controversy on this point from the defensive point of view but no disagreement as to the importance of keeping Formosa out of the hands of any potential enemy of the United States. In the past, Formosa had been used as a base for aggressive operations. We did not want it to be used as such again. There was also a problem of the native population of Formosa—some 7,500,000 people. Their rights had not been fully considered in the past. He noted that when it had been agreed at Cairo to return Formosa to China, it was a different China which was involved.

Mr. Allison stated that the United States had four main objectives in Formosa. First, it desired to neutralize it from a military standpoint. Second, it desired to avoid the necessity of taking publicly, at this time, a rigid position on the substance of the final and ultimate solution of the Formosan problem. The basis for this position lay in the divergencies of the views of our friends on this matter. Third, we wished to provide a mechanism for more thorough study of the Formosan problem and for exchange of views on its solution. In the fourth place, we were anxious to ensure that the ultimate solution of the problem should be peaceful. These objectives were not easy to achieve, nor would they be accomplished quickly.

Mr. Allison drew the Delegation's attention to the draft resolution contained in document US/A/C.1/2266 and explained its provisions. The preamble gave the background of the problem in terms of the Cairo declaration, the present conflict over the right to administer Formosa, the situation in the Far East, and thus outlined the problem. Thereafter, the operative section proposed the establishment of a commission to study the problem and submit a report to the General Assembly containing recommendations for the future of Formosa and the Pescadores. It further recommended that pending this study there should be no attempt to change the status of Formosa by force, and it requested all governments in authority to act in conformity with this recommendation and to render every possible assistance to the commission in the performance of its tasks. He noted that, while there had been some feeling that a date should be set for the report from the commission, in the end it had been decided to leave the timing indefinite so that the commission itself would decide when to make its report. This commission also would hear all parties to the case.

Turning to the possible membership of the proposed commission,

Mr. Allison said that the Department had suggested two factors should be taken into account: first, adequate representation of Asian states; and second, the proper proportion between countries recognizing the Communist Chinese regime and those which had not done so. It was difficult to follow both these injunctions literally. However, the working group had devised a tentative list. We had to consider, among other things, whether the United States and the United Kingdom should be included on the commission or whether it should be entirely made up of smaller states. It was the staff opinion that the United States should be on the commission because this matter was too important for us to permit it possibly to go by default. If both the United States and the United Kingdom were included, there might be a move to add the Soviets and France, although the USSR had taken the position that the Assembly should not discuss Formosa at all. Our present slate included that [the?] United Kingdom, India and Pakistan as the three recognizing states, and the United States, the Philippines, Thailand and Australia, as the non-recognizing states. The views of the Department on this slate had not been received.

Mr. Allison said that it was contemplated that all the above states would sponsor the resolution, together with at least one Latin-American state, perhaps Greece and Belgium, and one or two others if it appeared useful to broaden the sponsorship. It was felt, however, that the membership of the commission should be limited to those countries which were readily seen to have a direct interest in the Pacific area. Sponsorship, on the other hand, could include a wider group, representative of all areas in order to obtain broad support for the resolution.

Mr. Allison explained that we had been in close touch with the British on this resolution. The British had discussed and informally approved this draft, although we did not yet have general approval from the British Commonwealth, Canada being most skeptical, and Australia most enthusiastic. There were some indications that India would support a resolution along these lines. The British had assumed that the big powers would not be on the commission, but were willing to consider this possibility.

Mr. Allison asked the Delegation whether this resolution met the immediate objectives which we had in mind, taking account of the fact that we were not trying to arrive at a final solution, but merely to maintain the *status quo* on the Formosan situation. He also wished to have the Delegation's views regarding the composition of the commission, particularly the inclusion of the United States. Finally, he would like to receive views with respect to the sponsorship of the resolution.

Ambassador Austin asked whether part of our position would be to oppose debate at this time on the substance of the Formosan question.

Mr. Allison explained that the Department did not wish to have the substance discussed. We had talked this over privately with our friends. The British also did not want discussion since we had different positions, and had agreed upon the importance of confining the present discussion to methods for its further consideration.

Ambassador Austin inquired as to the view of the Chinese Nationalist Delegation and Ambassador Tsiang on this matter. Mr. Allison indicated that the Chinese Nationalists were much concerned about two matters. In the first place, they were concerned that this sort of action might make it easier for waverers to withdraw recognition from the Nationalists and transfer it to the Communists. Debate on the Formosan issue might cast doubt upon the status of the Nationalists. In the second place, the Nationalists did not like the fact that neutralization of Formosa meant that they would have to resign themselves to taking no steps to regain their position on the mainland. Both of these were real problems; we would not be able to satisfy the Nationalists completely on them. Yet this resolution did give the Nationalist Chinese an advantage for a temporary period. It ensured them against armed attack and gave them that much more time to strengthen their own internal position.

Mr. Dulles[2] wanted to assure the Delegation that Formosa had been discussed fully between the State Department and the Defense Department, and there was agreement as to the present adequacy of the resolution from the standpoint of our military program in the Far East. Assistant Secretary Rusk had discussed the matter in detail with Under-Secretary of Defense Lovett. He also observed that a top secret letter had been sent from the Secretary of State to the national Defense Department covering various agreements made with respect to Formosa.

Mr. Dulles went on to say that he had discussed this matter with Ambassador Tsiang. He had made clear to him that regardless of what happened, no further binding commitments could be made by any government to the Nationalist Chinese on the subject of recognition, and that, regardless of whether the United Nations treated Formosa as a subject for international concern, in the case of the United States it would not be a reason for withdrawing recognition, nor would we encourage anyone else to think it was a basis for changing his present position on Nationalist China. He had also told Tsiang, as regards the activities of the Chinese Nationalists, that the only thing which would be suspended would be open armed attack, and that neutralization would not prevent covert activity and communication with the friends of the Nationalists on the mainland. He also had noted that any other course might extend the war so that we

[2] John Foster Dulles, Consultant to the Secretary of State, was a United States Representative to the Fifth Session of the U.N. General Assembly.

would have to fight the Chinese Communists on a total basis. After all, our position would always have to take into account any change in circumstances, such as extension of military warfare.

Ambassador Austin asked whether the draft resolution represented the policy of the Delegation. Senator Lodge [3] asked where there was any statement in the resolution to the effect that it would be abrogated if the general situation in the Far East should change. Mr. Dulles assumed that new General Assembly action would be taken if anything of that nature happened. He would cover this point in his speech.[4] He certainly thought that before the United States used Formosa as a base, or encouraged the Nationalists, there would have to be fresh United Nations action. Any activities now of the United States in the Far East, he understood, could be based on Okinawa, Japan and the Philippines. In answer to a question from Senator Lodge as to whether this proposal had been approved by the Joint Chiefs of Staff, Mr. Dulles said that he did not know, but since it had been fully cleared with the Secretary of Defense, he supposed that it also had the approval of the Joint Chiefs. Senator Lodge observed that if this resolution were approved, it would assume we were not going to have a war with China. He hoped that was right. Mr. Dulles said he would not want to introduce a resolution implying on its face that we would want war in the Far East.

Senator Lodge remarked that it was still not clear to him just exactly what we would like to have happen to Formosa. Mr. Dulles said he could provide one answer to this question, but he was not sure that his answer would have the weight of authority. He thought there was no agreed solution at the moment which could be said to be the policy of the United States. He personally had in mind several objectives for our action in Formosa. First, we should effectively neutralize the island; second, we should consider the development of some measure of local autonomy for the people of Formosa, who had always been in a constant state of unrest and oppression, no matter who rules Formosa. In the third place, there should not be any abrupt change in trade relations between Formosa and Japan, where there were two highly complementary economies. Those three things, he believed, the commission would have to take into account. The actual framework of the final solution would, of course, depend on the evolution of conditions throughout Asia. What happened in China would be important. Possibly a temporary United Nations trusteeship might be the right solution for Formosa. So far as he knew, there was no firm United States policy. He thought the United States would go into this commission

[3] Senator Henry Cabot Lodge, Jr., of Massachusetts, was a United States Representative to the Fifth Session of the U.N. General Assembly.

[4] Reference is to Mr. Dulles' forthcoming speech before the First Committee on November 15.

with an open mind as regards the final result, but having in mind various factors which it would take into account. In addition to those he had already mentioned, the age-old association of Formosa with China had to be taken into account. He admitted, however, that it was difficult to see how all these factors could be woven together. He would be surprised if the commission could come to any decision by the time of the next General Assembly. He referred parenthetically to the fact that the Italian colonies, which were a far less complicated problem, had taken a great deal more time, considering not only the period during which their fate was under consideration in the Council of Foreign Ministers, but also the time—over two years—consumed in the United Nations.[5]

Senator Lodge inquired whether the United Kingdom, India and Pakistan had expressed their views on Formosa. Mr. Dulles said that India believed that Formosa should be promptly returned to the Communist regime. The United Kingdom said the same thing, but he believed it had its tongue in its cheek. The British appeared to feel that their position in Hong Kong was immune so long as they could persuade the Chinese Communists that they were trying to get Formosa back for them. That was his own interpretation of their position. He did not know Pakistan's position. Senator Lodge observed that the Indian and British views ran directly counter to those of the United States.

In response to a query, Ambassador Jessup[6] said he had nothing particular to add, noting that he had just been away on a two-week vacation. He understood our position to be what Mr. Dulles had described. He believed that it was not a proper procedure, in putting a subject into the United Nations, to say that there was only one solution which we would accept. We had to go to the United Nations with an open mind. We certainly could not start out by saying we would not agree except to a certain solution. There were several possible solutions, as he saw it. All of them might take considerable time to work out. He asked Mr. Dulles whether his speech would make clear that the proposed commission could visit Formosa. Mr. Dulles said that, before the resolution came to a vote, he expected to submit an express provision to that effect or to clarify this point in the debate.

Senator Sparkman[7] recalled that several times in the course of the discussion, reference had been made to changing conditions in the Far East. It seemed to him that once that fact was recognized, it was necessary to inquire as to the urgency of a study of the Formosan problem at this time and why it should not be postponed until conditions were more settled.

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[5] Related documentation is scheduled for publication in volume III.

[6] Ambassador at Large Philip C. Jessup.

[7] Senator John J. Sparkman of Alabama, was a United States Representative to the Fifth Session of the U.N. General Assembly.

Mr. Dulles thought the reason for dealing with Formosa now was to get a certain amount of international sanction for the present United States unilateral action in assigning the Seventh Fleet to defend, or rather to preserve the neutrality of Formosa. This had been criticized in United Nations circles. Just because the situation might be prolonged for a considerable period, it seemed wise to get a United Nations decision to the effect that Formosa was a matter of international concern and that it was to be kept out of involvement in the present Far Eastern crisis by maintenance of its present status. There was a certain amount of subtlety in the resolution to make it acceptable to our Commonwealth friends, but this was the intention, and it did sanction the maintenance of the *status quo*. Mr. Dulles referred to the statement made by the President at his press conference to a question on the withdrawal of the Seventh Fleet to which the President had responded that it was there to protect our Korean flank.[8] If we maintained our fleet there, particularly if the Korean situation should improve, we would require some international sanction, or otherwise our policy would arouse serious suspicions in Asia. The present situation was in suspense because of weather conditions and the ensuing monsoon season. After February there was another period when an invasion might be possible. It would then become important to have Formosa's neutralization sanctioned internationally.

Senator Cooper[9] referred to the provision in the resolution regarding the interests of the Formosan people. He did not believe that the second paragraph set forth clearly enough their interests. He would have thought that this item could be better covered in a separate provision. Mr. Dulles did not think this would be possible if we submitted a resolution jointly with the British. That was the reason for the present obscure language. The British simply were not willing to accept explicit language on these points. We had in mind some reference to Chapter XI of the Charter in this regard, but the British did not want such an explicit reference on the ground that it tended to prejudge the validity of the Cairo Declaration. If we wrote our own resolution, Mr. Dulles would prefer to spell out more clearly the interests of the Formosan people, but we simply could not do this and get the British to go along. They would not cosponsor a resolution which appeared to suggest that the independence of the people of Formosa should take priority over the Cairo Declaration.

Senator Lodge observed that from the standpoint of American public opinion, the draft resolution was not a very appealing document.

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[8] See the editorial note under date of August 31, p. 476.

[9] John Sherman Cooper, Consultant to the Secretary of State and former Senator from Kentucky, was an Alternate United States Representative to the Fifth Session of the U.N. General Assembly.

Without direct reference to the eight million inhabitants, it looked like the old power politics type of proposal.

It was agreed that the discussion should be continued at the next Delegation meeting.

IO Files

Minutes of the 40th Meeting of the United States Delegation to the United Nations General Assembly

SECRET NEW YORK, November 15, 1950—9:15 a. m.

[Here follows a list of the 47 persons present.]

Formosa (US/A/C.1/2266)

Mr. Allison explained that after yesterday's Delegation meeting, the Staff and Mr. Dulles had discussed further the composition of the proposed Formosan commission. The British had indicated to us their opposition to the inclusion on the commission of either the United States or the United Kingdom on the theory that the whole purpose of this resolution was to lower the temperature in Peiping and to constitute a reassurance to the Chinese Communists. They felt that the inclusion of the big powers might have the opposite effect. We had not agreed to this viewpoint but did not press our view upon the British. We had discussed the matter with the Department, and informed them of the seriousness of the situation, since the British might not serve as co-sponsors of the resolution if the United States were included on the commission, and we had stated the staff view that this was a matter of too great importance for the United States not to be on the commission. Mr. Rusk had discussed the matter at a high level within the Department, and as a result, several definite conclusions had been reached. In the first place, it had been decided that the United States should be a member of the commission. In the second place, it had been decided that the Delegation should endeavor to persuade the British to accept membership on the commission. In the third place, it had been agreed that the inclusion of the Soviet Union on the commission, if this issue were raised, should be opposed on the grounds that it had not been an active participant in the Pacific war and therefore would not have the same interest as the other proposed members of the commission. Sir Oliver Franks, the British ambassador, was being called into the Department this morning, and these views would be communicated to him. Mr. Allison said that Mr. Dulles had also discussed this subject with Mr. Younger[1] last night.

Mr. Dulles said he could not add very much. He had gotten the same impression as that reported by Mr. Allison, namely that the

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[1] Kenneth Younger, Minister of State, was a British Representative to the Fifth Session of the U.N. General Assembly.

British were afraid that the inclusion of the United States and the United Kingdom would, at the very least, increase the present tension with the Chinese Communists, which they wanted to minimize to the greatest extent possible. They thought that if we both went on the commission it would give credence to the view we desired to be sure of the result of the commission's work.

Ambassador Austin asked Mr. Allison whether he had talked with the member of the Japanese Parliament who had visited the Mission yesterday. The Ambassador noted that he had expressed great curiosity about Formosa. Mr. Allison replied that he had not seen the Japanese gentleman but observed that the final disposition of Formosa would be in the Japanese peace treaty or by some other international action. It had been assumed that in any peace treaty Japan would renounce all its claims to the island. Ambassador Austin wondered whether the Japanese were building up hopes for eventual return of the island to Japan. Mr. Allison did not believe this feeling was widespread in Japan. When he had been there last summer with Mr. Dulles he had seen no evidence of such sentiment, although the Japanese did entertain hopes with respect to certain other islands.

Senator Lodge asked what the situation would be if no resolution were adopted on Formosa. Mr. Allison explained that the situation would be very much the same as it was now, but the passage of a resolution would give an aura of international sanction to what had been a unilateral act on our part in stationing the Seventh Fleet so as to neutralize Formosa.

Mrs. Roosevelt [2] wished to know, as a matter of information, what the status of an agreement like the Cairo Declaration was when a government changed in the meantime, as had been the case in China. She wondered whether it rendered such an agreement null and void. Mr. Allison said this was a legal question to which he did not have the answer. However, he could say that our war-time statements were generally considered to be statements of purpose which had to be implemented after the war. In this connection he cited an article in the State Department *Bulletin* in which Mr. Byrnes had referred to President Roosevelt's understanding of the situation in approximately these terms. It seemed to Mrs. Roosevelt that the situation had changed entirely when the Chinese Government changed. It would be different if we still had free relations with the new Chinese Government. Until such a time she wondered whether it was appropriate to take the Cairo Declaration into account in a United Nations document.

Mr. Tate,[3] speaking of the legal question involved, said that ordi-

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[2] Mrs. Franklin Delano Roosevelt was a United States Representative to the Fifth Session of the U.N. General Assembly.

[3] Jack B. Tate, Deputy Legal Adviser, Department of State, was Legal Adviser to the United States Delegation.

narily agreements were not abrogated by changes of government; certain agreements were even carried through after a war. If conditions changed so that agreements could not be carried out, then there was reason for trying to get a modification of the agreement. In the case of Formosa, we solemnly pledged that Formosa was to go back to China. He thought this pledge still stood.

For Ambassador Austin, the question was whether in this particular resolution we should give color and substance to the Cairo Declaration by a recital of the facts involved therein. After all, the dominating force in Formosa today was Nationalist China. He wondered whether we could not recite that fact in the preamble.

Mr. Dulles returned to the meeting and said he had just talked with Mr. Rusk again on the telephone about the Formosan question. The Department continued to feel strongly that the United States should be a member of the commission. It did not share the British concern as to its bad effect on the Chinese Communists, who would do what they had planned, regardless of events. Their activities so far reflected long-range planning.

Senator Cooper asked to what item on the agenda this resolution would be addressed. Mr. Dulles explained that the agenda item was entitled "The Question of Formosa" and had been submitted by the United States. Senator Lodge asked why the item had been placed on the Assembly's agenda in the first place. Mr. Dulles explained that it was because we wanted to make the matter of Formosa and its disposition a matter of United Nations treatment like the Italian colonies. Mr. Cohen [4] suggested that it was not only this desire, but also a recognition of the fact that there had been very considerable resentment in the countries which were our allies at not only our unilateral action but also our overall policy with respect to Formosa. He referred in this connection to a London radio report last Sunday which indicated that nearly the entire British press reaction on Formosa, whether from the Right or Left, was unfavorable to United States policy. It seemed that we would not escape the problem if nothing at all were done on Formosa.

Mrs. Roosevelt thought that the purpose of the submission of the agenda item was to make Formosa a United Nations question rather than a question where the United States was simply acting upon its own policy. We were, in fact, getting international approval of our good faith in acting unilaterally in the first instance. Mr. Dulles agreed that the main purpose was to make Formosa a matter for action by the United Nations. He went on to point out that the United States was in an extremely difficult dilemma in Asia. On the one hand, we had

[4] Benjamin V. Cohen was an Alternate United States Representative to the Fifth Session of the U.N. General Assembly.

to assert our resources with strength in certain areas. When we did that we were accused of resuming imperialistic policies in Asia. We had to take what precautions we could to reassure the peoples of Asia that our power was not being asserted purely from the national viewpoint, but that it was in the interest of the United Nations and of international peace and security in that part of the world for the United States to pursue its present policies. On the other hand, in order to avoid suspicion in this area and to be able to accomplish what the military felt was necessary in the area with a minimum of repercussions, submission of the item to the United Nations seemed to be the best course of action. Mr. Dulles still thought it was the wise thing to do, although he admitted that this course was fraught with difficulties and uncertainties.

Ambassador Austin raised certain questions respecting the text of the resolution. He did not feel that the text set up the issue as it really existed. It did not reveal clearly the claims of the Nationalists, and in his opinion, it seemed to be slanted toward turning over Formosa to Communist China. He did not believe that was the purpose of the resolution, however. Mr. Allison commented that the purpose of the resolution was to find language which would not slant the resolution in any direction. It was intended to be objective. The purpose of the resolution was to postpone decision on the substantive aspects of the question until a report and recommendations were received from the proposed commission.

Ambassador Gross felt compelled to disagree with Ambassador Austin's comment that the resolution was slanted. He regarded the text as well balanced. He knew from what Ambassador Tsiang had told him that he felt Formosa should not be raised as an issue at all. The question how and when Formosa should be restored to China was a very difficult one. Both Chinese Governments would like to see something in any resolution referring to the Cairo Declaration and its statement as to the ultimate disposition of Formosa. These viewpoints could not be taken into account without mention of the Cairo Declaration. The second paragraph of the preamble simply showed the nature of the dispute between the parties.

Ambassador Austin asked whether there would be any objection to the insertion in the appropriate preambular paragraph of a phrase stating that the Nationalist Chinese now occupied and administered the island of Formosa. Ambassador Gross said he would not object to it. However, he thought the Nationalists might, since the phraseology would imply that they did not have sovereign rights in Formosa, and he believed that probably this phrase would create more difficulties than the present language. Mr. Allison commented that its inclusion would ensure that we would have no co-sponsors for our resolution.

Mr. Ross [5] was somewhat concerned by the first paragraph referring to the Cairo Declaration. He thought this set the problem in historical rather than legal terms. The average man in the street might well interpret this paragraph as slanting the resolution toward the restoration of Formosa to Communist China. That paragraph, in his opinion, would make it necessary to explain why we were not doing just that. It was perfectly clear that both Chinese Governments felt Formosa should be a part of China. He believed the interests of China must be conceived under present circumstances as being the long-run interests of the people of China. He was also troubled by the second paragraph which seemed rather negative. The fourth paragraph made the first reference to the future of Formosa. He questioned whether we ought not to try to turn the resolution around and state our objective first—the interests of China and the people of Formosa. Mr. Ross referred to Mr. Dulles's analogy between Formosa and the disposition of the Italian colonies. He thought there was a real difference in this case, however, since the General Assembly had a greater sense of the emergency of the situation. The Assembly might feel that the establishment of the proposed commission was not altogether satisfactory. The fifth paragraph he found rather namby pamby. It was only a recommendation that there should be no armed attack. There was no reference to any sanctions. He thought the resolution might at least authorize the commission to report to the Security Council or the General Assembly any information as to the threat of such an armed attack.

Mr. Allison said that in general he would like to agree with Mr. Ross, but he did not think, as a matter of practical politics, the changes which he suggested could be made. As regards the suggested reference to the Security Council, the Department had originally suggested a provision to this effect. That provision had been objected to by everybody outside our own Delegation. Mr. Allison emphasized that one of the chief purposes of this resolution was to meet very different points of view among various governments, to reduce the possibility of public friction between the United States and its chief allies, and to delay any final settlement for the present in the hope that as time went on, and the motives of the Chinese Communists became more clear, our friends would take on more and more our own attitude with respect to this situation. He agreed that the draft resolution was far from perfect, but we could not maintain our purposes and the support of our friends with any other draft.

Mr. Dulles pointed out that the basic reason for this text was to take the sting out of our present position in Korea so that its effect would not be so bad on the peoples of Asia. If that was not a legitimate

[5] John C. Ross, Deputy United States Representative in the U.N. Security Council, was also an Alternate United States Representative to the Fifth Session of the U.N. General Assembly.

objective, we could take Formosa today and do what we wanted with it. That was not considered to be sound tactics. He was fully in agreement with that policy. We could not have it both ways. We could not say it was bad for us to take Formosa by force and then believe that we could get the benefit of United Nations coverage without taking into account the feelings of other members of the United Nations, whose views had to be taken into account. Our desired result would flow from this resolution, he felt sure, but we had to proceed gradually. If we wrote a resolution setting forth our ticket in detail, it would prejudge the case, and we would immediately run into great difficulties. That was the reason why he did not think it wise to write these purposes into the original text. With proper handling in the commission, the United States views and intentions, which were eminently reasonable, would receive the support of other countries. We would destroy our influence and chances for support in the United Nations, however, unless we went to other countries on this problem and stated frankly that it required consideration, that we had no detailed program, but that we wanted them to consider it, along with us, with open minds. Otherwise, we would get nowhere.

Ambassador Jessup thought we should take account of the fact that Formosa had been put on the agenda by the United States. It had been our experience in the Assembly that if we retained the initiative in guiding the discussion, we were more likely to direct a solution along lines appealing to us than if we left the matter to the initiative of others. If we failed to submit this resolution, he believed we risked the adoption of a much less favorable resolution—even, for example, a resolution suggesting that Formosa be turned over to the Communists. He added that in the general Far Eastern situation, time was working on our side. The British position moved constantly toward our position. The policies of the Chinese Communists were bringing this about more and more. If we got a commission established, thereby buying time, he believed we would find that, before the commission reported, very much of the present opposition to our policies would be dissipated, and we would gather strength in the commission for our point of view. He also thought we needed a text which would attract co-sponsors. This text was the result of such negotiations, he understood. Mr. Dulles noted that we had consulted only with the British.

Senator Sparkman did not find any difficulty in the major portion of the resolution, but his first reaction was that the first paragraph started us off on the wrong tack. We announced there something which people would generally construe as the belief that Formosa would have to be turned over to Communist China. He thought it would be better to re-write the preamble without any implication that Formosa was to go to the Chinese Communists. He knew this was not intended,

but we were playing with a very dangerous situation as the first paragraph was now drafted. Mr. Allison thought the third paragraph threw the question wide open. The first paragraph simply noted the past statements on Formosa; the second dealt with the present situation; while the third paragraph opened up the question which the commission was to consider.

Senator Sparkman said that he received many letters saying that the Administration was simply waiting for the elections to be over to allow Communist China to come into the United Nations. According to these correspondents, a second thing we were waiting to do was to turn Formosa over to Communist China; the third was to recall General MacArthur. It seemed to him that the general public would think we were moving on the second phase right now if this resolution were submitted. Mr. Allison felt that if there were any inference at all in the first paragraph, it would be that Formosa would go back to the Republic of China, which was the Chinese Government which the United States recognized. Senator Sparkman pointed out that the other co-sponsors would take a different position. He still did not believe this language reflected accurately our position on China.

In answer to a question from Ambassador Austin, Mr. Dulles indicated that the phrase, "Republic of China," was the historical term used in the Charter to apply to the Nationalist Chinese Government. In this connection he referred to Mr. Vishinsky's proposal, in connection with the Syrian-Iraqi resolution adopted with the "Uniting for Peace" resolution, to change the phrase, "Republic of China," to "People's Republic of China."[6] He thought there was no misunderstanding as to the government to which this term applied.

Senator Lodge understood the dilemma in the Far East. On the one hand, we were trying to prevent ourselves from being overrun and, on the other, not to subject ourselves to charges of imperialism. He referred to the fact that last January he had publicly expressed his opposition to the suggestion made by Senator Taft and former President Hoover that the United States should take over Formosa for the very reasons which Mr. Dulles had mentioned. There was nothing further from his mind in the present case than that the United States should write its own ticket. However, he did not believe we should have a resolution for the sake of getting co-sponsors which at the same time would frighten away the American public, since, after all, in this government, public opinion was of primary importance. He believed the first paragraph made the resolution entirely unacceptable to the American public, and he would have to withhold his approval from the resolution for that reason.

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[6] For documentation relating to the Uniting for Peace Resolution, see vol. II, pp. 303 ff.

Senator Cooper referred to his remarks at the previous meeting on the lack of emphasis in the resolution respecting the interests of the Formosan people. The text of the preamble, in his opinion, seemed to imply that when the dispute between the two contending governments was decided, Formosa would be turned over to either the Nationalists or the Communists. He wondered whether there might not be grounds for a new decision, either upon the basis of our security, or the interests of the people of Formosa which had not been considered. He referred to the President's statement at the time the Seventh Fleet had been stationed in Formosa, when our position had been tied fully to the Korean war. We were now extending that declaration of the President to provide for the complete alienation of Formosa from China. He wondered whether that might not increase the embarrassment of our position since our Allies had appreciated the original security reasons behind our position in Formosa.

Mr. Dulles referred to the various remarks expressing concern at the reference to the Cairo Declaration in the resolution. The Nationalist Chinese had made the most insistent and urgent plea that we keep as close as we could to the Cairo Declaration. Otherwise, they contended, this resolution would be fatal to the interests of the Nationalists. The Delegation certainly would wish to pay attention to the Nationalists' views since they had indicated that they could not cooperate with us unless the resolution took the Cairo Declaration as its starting point. Their position was that the Cairo Declaration stood, and that final action on the disposition of Formosa was simply being deferred. It was important to maintain good relations with the Nationalists. If the reference to the Cairo Declaration were dropped, we would immediately antagonize them. As regards the independence of the people, the present language was inserted in an effort to meet the same concern that we were not giving the whole problem a new deal and were not implying that an independent state of Formosa should be created, to be alienated permanently from China. Mr. Dulles said that if there were a choice today, he would feel an independent trusteeship for Formosa was the best solution, but at this stage we could not commit ourselves definitely to that solution. He thought that this resolution would be interpreted in some quarters as an attempt to restore Formosa to the Communist Chinese. Any resolution not susceptible of that interpretation would be a resolution bad from the standpoint of the Nationalists and the co-sponsors. The resolution, in its present form, was written just as much to meet the Nationalists' views as anything else, and in that respect, the Nationalists and the Communists alike desired reference to the Cairo Declaration. We had experienced great difficulties with the Nationalists on this point. Mr. Dulles recalled that the British resolution had started out with the statement that whereas the population of Formosa was predominantly

Chinese, and whereas Formosa was traditionally Chinese territory, etc., which language would be even more difficult. We were steering an extremely difficult course in this case. If we should decide to submit our own resolution without seeking co-sponsorship, he then believed we would wish to re-phrase this resolution to some extent. However, if the Delegation agreed it was desirable to have co-sponsorship, he thought it would be difficult, if not impossible, to make any appreciable changes in the present text.

Mr. McKeever[1] wondered whether Senator Sparkman's points might not be met by reversing the order of the first two paragraphs. Mr. Tate said that he had intended to make a suggestion along the same line. The first paragraph might then contain a recognition that the two parties claimed the right to administer Formosa as a result of the Cairo Declaration. The second paragraph could refer to the threat of an armed attack; this would set the problem first in terms of the present conflict and second, the threat to the peace.

Ambassador Austin said it was apparent to him that there was strong disagreement within the Delegation, both with respect to the general policy and the text of the draft resolution. All seemed to agree that the resolution was slanted. The Ambassador reviewed the various disagreements which had arisen in the Delegation and inquired whether in this situation it was not wise for the Delegation to request reconsideration of the text of the draft resolution.

Mr. Dulles admitted that our position was very difficult. Formosa was simply one part of our whole policy on the Far East. In his opinion, it was hardly fair to ask the Assembly Delegation to deal with Formosa as a separate matter. He suggested it might be better to report back to the Department the different views expressed in the course of the meeting and let the Department decide whether to treat this subject as a matter which under the law could be one on which the Delegation would be instructed as to how to proceed. It was his guess that the Department would feel, because of the interdependence of this matter with other issues, that it was hardly fair to the Delegation to act independently on this. He personally shared many of the views and concerns expressed by other Delegates and agreed they should be taken into account if this subject were to be dealt with as a matter which was not interlocked with other matters in the Far East. He thought it was best to inform the Department of the Delegation views, to see to what extent these views could be taken into account and then to remove rsponsibility from the Delegation, if the Government itself, desired to introduce such a resolution.

Ambassador Austin said he had always found the Department very considerate of the Delegation's views. We could ask the Department

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[1] Porter McKeever, Public Information Officer, United States Mission at the United Nations, was Information Officer of the United States Delegation.

for its opinion on reconsidering the text of the resolution, or at least re-writing the first paragraph, and inform it of the basis for this request. If the Department still desired to put forward a resolution, the Delegation could make clear its view that from the standpoint of public opinion, nothing should be included which would give an erroneous impression that the resolution was slanted in a certain direction.

There was no objection to the suggestion that the matter be submitted to the Department in this way, with a request for as early an answer as possible. Mr. Dulles observed that the matter might arise in the Committee this afternoon.

320/11–1550 : Telegram

The United States Representative at the United Nations (Austin) to the Secretary of State

TOP SECRET NIACT NEW YORK, November 15, 1950—12 : 26 p. m.

Delga 290. For Secretary from Dulles. Re Formosa: Formosa matters discussed yesterday and today at delegation meeting. (Re Delga 289, November 15.[1]) At conclusion Austin summed up situation by saying it was apparent to him that there was virtually unanimous opposition on the part of the delegation to the resolution as drafted and that this should be reported to the Department.

The objections raised by Mrs. Roosevelt and Senator Sparkman could probably be met by a redrafting of the resolution which would delete or subordinate the reference to the Cairo Declaration. Objections on the part of Austin, Lodge, Cooper and Ross are more fundamental since they feel that no resolution would be acceptable to the Senate or to American public opinion unless it made clear beyond doubt on its face that under it there could be no turning over of Formosa to Chinese Communists. I expressed the opinion that the differences within the delegation were such that I doubted that there could be anything like unanimity within the delegation on a form of resolution that the British would go along with or indeed that would have much chance of adoption and that if the Department wanted us to go along the lines of the present draft it would be necessary to invoke the legal authority to instruct the delegation.

My personal judgment is that it is unwise from many standpoints to present this item in the Assembly at the present juncture. From standpoint of domestic policy, there is great sensitiveness regarding

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[1] Not printed. It transmitted a summary of the discussion at the 40th Meeting of the United States Delegation to the General Assembly, the minutes of which are printed *supra* (320/11–1550).

Formosa. There is popular belief of a divergence of opinion between Administration and some Republicans and undoubtedly the contemplated action would be misinterpreted as a desire to put the future disposal of Formosa out of the US Government's independent control just in time to prevent the new Congress from asserting its influence upon this most controversial item of American foreign policy. Also, from the purely military standpoint the proposal may have present disadvantages greater than advantages as it now seems that the need of the fleet to protect the Korean flank will persist for a considerable period of time, irrespective of fresh UN action whereas the UN action would have some tendency to make the Chinese Communists feel that they could concentrate their troops in North Korea without fear of possible attack from the Nationalists on Formosa. From the standpoint of relations with the UK and other friendly powers who disagree with us about Chinese Communists we doubt that any co-sponsorship would serve for long to conceal our present underlying differences and that the debate would be bound to bring these differences into sharper relief than if the matter were not publicly dealt with here. Under all the circumstances, recommend that we state at this afternoon's meeting that in view of the rapidly changing and unpredictable situation developing in China since the item was proposed and in view of the prospective discussion of Formosa in the Security Council, we ask that the item in the GA be dropped to the foot of the agenda and that the present consideration be suspended subject to the possibility of taking up the matter at a later date should developments make this seem the wise course in the interest of international peace and security. Austin concurs.[3] [Dulles.]

AUSTIN

[3] At the meeting of the First Committee at 3 p. m. on November 15, Mr. Dulles proposed that the debate on the Question of Formosa be deferred, and the Committee assented by a vote of 53 to 0, with 5 abstentions (U.N. document A/C.1/SR.399). This question was not taken up again during 1950; see telegram Gadel 162, December 5, to New York, p. 589.

794A.00/11-1550

The Secretary of Defense (Marshall) to the Secretary of State

TOP SECRET WASHINGTON, 15 November 1950.

DEAR MR. SECRETARY: With reference to your letter of 11 November 1950 concerning the question of Formosa in the United Nations and enclosing a draft resolution, the Department of Defense appreciates your consideration in making available to it the draft resolution and the views of the Department of State in this matter.

In view of the military implications of this problem, and particularly the points raised in the last paragraph of your letter, the letter and the draft resolution have been referred to the Joint Chiefs of Staff for their views and recommendations, as a matter of priority. For the same reason, the Department of Defense intends to reply in substance to your letter, before, it is hoped, a United States position has been officially taken on this matter or a draft United States resolution introduced in the United Nations. Therefore, the Department of Defense requests that such action be deferred until the views of this Department are available.[1]

In this connection, the Department of Defense believes that it may be timely and appropriate for the National Security Council now to review the current position of the United States with respect to Formosa. Accordingly, the Department of Defense, for its part, is considering such action in view of the serious military implications involved in the consideration of the status of Formosa in the light of present conditions in the Far East.

Faithfully yours, G. C. MARSHALL

[1] See footnote 2 to telegram Delga 290, November 15, from New York, *supra*.

794A.00/11–1650

Memorandum of Conversation, by Mr. Eric Stein of the Office of United Nations Political and Security Affairs

SECRET [WASHINGTON,] November 16, 1950.

Subject: Formosa

Participants: Mr. Dulles
Mr. Hickerson
Mr. Rusk
Mr. Allison
Mr. Clubb
Mr. Henkin
Mr. Stein

Mr. Dulles stated that in the light of the attitude taken by the United States Delegation to the General Assembly in yesterday's meeting there appeared to be two possible courses of action on the agenda item, "The Question of Formosa". First, we could let this item peter out in this Assembly and not ask for any action, and second, we could abandon the subtle attitude of not stating our views as to the ultimate disposition of Formosa and state frankly several basic principles which we would consider as appropriate framework for a plan for the solution of the Formosa question.

These principles are:

1—The United States, as a principal victor of the war in the Pacific and as the sole occupying power of Japan has great responsibility in the disposition of Formosa;

2—With the exception of the relatively brief period of Japanese domination, Formosa has been part of China for centuries. The history of the island and the ethnic characteristics of the population call for ultimate restoration of sovereignty over the island to China.

3—The restoration of sovereignty can not take place as long as the possibility exists that Formosa may become a base for a new aggression in the Pacific and the object of a bloody civil struggle.

4—The people of Formosa must be given an adequate measure of autonomy and self-government under the sovereignty of China; the relations between Formosa and China must ultimately be based on the consent of the people of Formosa and China.

5—In view of the complementary nature of the Formosan and Japanese economies a long term arrangement should be made insuring a continuation of close trade relations between Formosa and Japan.

6—Formosa should be demilitarized.

The question of Formosa should be made the subject of an inquiry by the General Assembly, not as an immediate problem of maintaining international peace and security but on the same long term basis as the United Nations consideration of the disposition of former Italian colonies. We should further declare, Mr. Dulles continued, that the above principles may not be perfect but, that in our view they provide an adequate framework for a General Assembly inquiry. These principles could either be incorporated in the resolution providing for such inquiry or expressed in our statement introducing the resolution. Under the resolution the Assembly would appoint a commission which would carry out the inquiry. Half of the members of the commission would be selected from among the Japanese treaty powers and the other half from among other members of the United Nations, such as Sweden and Belgium. The commission would study how, when and under what conditions the above principles could be put into effect.

Mr. Dulles suggested that any new draft resolution should not contain a recommendation that there should be no use of force pending an inquiry by the commission; the Defense Department people believe, Mr. Dulles said, that this recommendation would work in favor of the Chinese Communists: they would assume that we shall abide by the recommendation and not permit an attack from Formosa on the mainland pending the study, which would leave them free to shift their troops from the invasion coast to Manchuria and then return them to the invasion coast if and when they decided to invade Formosa in disregard of the recommendation.

Mr. Rusk pointed out with respect to the 5th [*6th?*] principle mentioned by Mr. Dulles that a neutralization of the island, with some Formosan armed forces on the island for at least nuisance value against an invasion, might be better than a complete demilitarization which would invite invasion.

Mr. Hickerson thought that it is important for a commission to be appointed and that in any terms of reference for the inquiry a possibility shoud be left open for independence or United Nations trusteeship over Formosa.

Mr. Rusk stated that Mr. Dulles' views are of great interest and will be further explored.

320/11-1650: Telegram

The United States Representative at the United Nations (Austin) to the Secretary of State

SECRET PRIORITY NEW YORK, November 16, 1950—2:05 p. m.

Delga 304. Re postponement consideration of Formosan item. At Pakistan dinner last night considerable number delegates expressed interest in "real reason" behind our motion in First Committee to postpone consideration Formosan item and our views in general as to where do we go from here on complex of Chinese items in Assembly and SC. Ross responded as follows:

At beginning of Assembly it seemed probable that Korean war would be successfully liquidated in fairly short time and that UN might then reasonably turn its attention to two constructive programs: (*a*) unification and rehabilitation of Korea, and (*b*) initiation at least of consideration of problem of future status of Formosa. Korean Commission was on its way to Korea and would do what it could in light of circumstances in pushing forward towards unification and rehabilitation. On other hand, did not seem wise to us in light of changed military situation in North Korea to plunge into consideration Formosan question. On contrary, seemed wiser to us to play for time pending clarification military situation. Furthermore, pending clarification military situation Korea, it seemed essential maintain protection Formosan flank.

Chauvel, Berendsen, Entezam and Santa Cruz,[1] with whom conversations held, expressed full agreement course taken.

AUSTIN

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[1] Jean Chauvel of France, Sir Carl Berendsen of New Zealand, Nasrollah Entezam of Iran, and Hernán Santa Cruz of Chile, Representatives to the Fifth Session of the U.N. General Assembly.

Mr. Daridan called at my suggestion in connection with a Japanese treaty. I explained that Mr. Allison had hoped to see Mr. Daridan while in Washington this morning but, having had to return to New York earlier than expected, had asked me to hand him the statement of tentative U.S. views which Mr. Dulles and Mr. Allison had been giving representatives of the FEC nations in New York, and to explain our background thinking on a treaty.

Mr. Daridan expressed approval of the desire of the U.S. Government to get forward with a treaty as rapidly as possible, and with the necessity for maintaining U.S. and possibly other friendly Allied forces in Japan in the post-treaty period. At the same time he stated that the assumption by Japan of a growing measure of responsibility for its own defense must be anticipated and that any other proposal would be unrealistic in light of present and prospective world conditions. In answer to his question whether our position on Formosa did not constitute a departure from the terms of the Cairo Agreement [1] I replied that the circumstances had changed greatly since that time, and that the results of the General Assembly's consideration of the Formosa problem would doubtless have an important bearing on our and other countries' final position on the question. Mr. Daridan said that he planned to send the U.S. memorandum to Paris and hoped to be in touch with us again in the matter shortly.

[1] Text of the Communiqué released to the press at the close of the First Cairo Conference held November 22–26, 1943, between the Heads of Government of China, the United Kingdom, and the United States, is printed in *Foreign Relations*, The Conferences at Cairo and Teheran, 1943, pp. 448–449.

694.001/10–2350

Memorandum of Conversation, by Colonel Stanton Babcock of the Department of Defense

SECRET [NEW YORK,?] October 23, 1950.

Subject: Japanese Peace Treaty

Participants: Dr. Wellington Koo, Ambassador of China
Dr. Tang, Chinese Embassy [1]
Mr. Dulles
Mr. Allison
Colonel Babcock

1. Dr. Koo said that he, and he felt sure his government, would support the U.S. position with regard to no military restrictions on Japan. He said that China was naturally worried about a possible resurgence of Japanese militarism but that she recognized the impossibility of enforcing indefinitely any military treaty clauses. He felt that

[1] Possibly Dr. Shao-Hwa Tan, Minister Plenipotentiary.

the presence of U.S. troops in Japan for a period was the best guarantee against Japanese militarism and was the most that anyone could hope for under conditions now existing.

2. Dr. Koo indicated that China would "like" something in the way of reparations. He said that China's economists were working on a plan which would combine reparations with a Trade Agreement over a long-term period "in a way which would be mutually helpful to Japan and China." When pressed to explain how this could be accomplished, Dr. Koo indicated that he was not thoroughly familiar with the details but that his government was hopeful of submitting a plan which the United States would find acceptable.[2]

3. Dr. Koo's principal objection to the proposed treaty was the provision that the status of Formosa should be settled by the United Nations. Mr. Dulles replied that he understood the Chinese viewpoint but that he wanted to be absolutely sure that China understood the United States stand. He pointed out that it was only because we took the view that Formosa represents a problem which should be settled by international agreement that we were able to protect Formosa with the Seventh Fleet. Were we to accept the Chinese point of view our use of the Seventh Fleet would constitute an interference in China's internal problems. Dr. Koo said that his government could not change its attitude but indicated that there would no serious attempt on China's part to embarrass the United States in "a continuation of its helpful attitude." [3]

[2] In a memorandum of a conversation held October 19 by Mr. Dulles, Mr. Allison, and himself with J. Barrington, Ambassador of Burma to the United States, Colonel Babcock stated in part that Ambassador Barrington had indicated his government would probably be disturbed over the lack of military restrictions and very much concerned over the waiving of reparations. "Mr. Dulles stressed in reply that the United States attitude was not motivated by any desire to 'forgive and forget' but was based on the realization that Japan could not pay reparations except to the extent that she received economic aid from the United States." (694.001/10–1950)

[3] For documentation on United States policy regarding the status of Formosa, see pp. 256 ff.

694.001/10–2650

Memorandum of Telephone Conversation, by the Assistant Secretary of State for Far Eastern Affairs (Rusk)

TOP SECRET [WASHINGTON,] October 26, 1950.

Subject: Japanese Peace Treaty

Participants: John Foster Dulles—USUN
Dean Rusk—Assistant Secretary

I discussed with Mr. Dulles his proposal to hand Mr. Malik [1] an additional *aide-mémoire* (copy attached) in connection with para-

[1] See the memorandum *infra*.

graph 3(*c*) of the memorandum on the Japanese Peace Treaty.[2] The latter memorandum has been handed by him to each of the delegations with whom he discussed the Japanese Peace Treaty and it can be assumed that the Soviets have a copy or the substance thereof from press reports.

I told Mr. Dulles that our view here was that it might be disadvantageous to give the Soviets an additional *aide-mémoire* and that as a matter of negotiating procedure, it might be better to handle the matter orally. I said we looked upon this first talk as a preliminary meeting and that we should not go any further with commitments than we have to pending some expression of Soviet views. I said we thought that it might be better, rather than to mention the Cairo Declaration, to say that the question of Formosa was before the United Nations and that it might be well to see how that discussion progressed before reaching any flat formula in connection with a possible peace settlement.

Mr. Dulles said that he accepted that method of handling and had suggested an additional *aide-mémoire* in order to try to head off a violent Soviet propaganda charge that we were scrapping the Potsdam and Cairo Declarations, etc. I said that we would probably get the propaganda charge anyhow and that further pieces of paper on the subject might be interpreted by the Soviets as documentary proof that their charges were well founded.

In closing Mr. Dulles expressed some dismay at what he thought was the unnecessarily unfavorable position into which we had moved by publicly threatening the use of the veto in the matter of the Secretary General.[3]

[Attachment]

Revision 3

Aide-mémoire with respect to paragraph 3(*c*).

It could be assumed that if the Japanese Peace Treaty were multilateral and the Soviet Union a party thereto, Japan would, by the treaty, cede South Sakhalin and the Kuriles to the Soviet Union.

As regards Formosa and the Pescadores, it is believed that it is appropriate for the United Nations to consider further and if so, how, the purpose of the Cairo Declaration could be carried out consistently with the obligations of Article 73 of the United Nations Charter, which obligations have now been assumed by the nations which were allied against Japan.

OCTOBER 25, 1950

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[2] Of September 11, p. 1296.

[3] For documentation pertinent to this question, see vol. II, pp. 87 ff.